

Mahesh Chandra v. State of U.P. & Others

Allahabad High Court · Division Bench · 17 April 2018 (order-sheet 11.2.2016 to 17.4.2018; writ disposed of by relegation to the Executive Engineer under Clause 6.5, limitation plea under Clause 6.15(b) preserved) · Writ - C No. 4999 of 2016 · **Writ petition disposed of with a direction. Finding no material on record to establish that any order of permanent disconnection had been passed for the petitioner's earlier connection (no. 2403/002140), and that there was a dispute about the nature and load of that connection, the Division Bench held that whether there was any permanent disconnection, and whether the connection was of a particular nature, are questions of fact to be examined by the third respondent (Executive Engineer) as a billing dispute in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005. The petitioner was directed to file a certified copy of the order with his objections within ten days; the Executive Engineer to pass an appropriate order in accordance with law within six weeks; and it was left open to the petitioner to take all pleas, including the plea of limitation (the recovery of about Rs.5,34,940 being enforced after 11 years, said to be barred under Clause 6.15(b)), before the Executive Engineer. The impugned recovery proceedings were made subject to the outcome of the Executive Engineer's order. The interim stay of recovery (order dated 6.4.2016) had continued throughout.**

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HEADNOTE

Mahesh Chandra challenged a demand bill of about Rs.5,34,940 dated 19 December 2015 and the ensuing recovery citation dated 1 January 2016, in respect of an old 5 HP tubewell connection (no. 2403/002140) which the Electricity Department treated as a 10 HP motor connection. His case was that he had applied in January 2004 to permanently disconnect that old connection after obtaining a new commercial connection, had received no notice or bill for eleven years, and that the belated recovery was time-barred under Clause 6.15(b) of the U.P. Electricity Supply Code, 2005 - under which no sum can be recovered after two years from the date it becomes due unless it has been shown continuously as recoverable as arrears of charges of electricity - relying on the Division Bench decision in *Satya Narayan v. U.P. Power Corporation Limited*, ALR 2013(5) 44. By interim order dated 6 April 2016 the Allahabad High Court found *prima facie* force in the time-bar submission, held the matter required scrutiny, and stayed recovery. The respondents never filed a counter affidavit. On 17 April 2018 the Division Bench declined to keep the matter pending: it found no material on record to establish that any order of permanent disconnection had been passed for the old connection, and held that whether there was any permanent disconnection and whether the connection was of a particular nature are all questions of fact to be examined by the Executive Engineer (respondent no. 3) as a billing dispute in terms of Clause 6.5 of the Supply Code. The writ was disposed of by relegating the petitioner to the Executive Engineer - to be approached within ten days with a certified copy and objections, and to decide within six weeks - leaving the petitioner free to take all pleas, including the plea of limitation, before that authority; the impugned recovery proceedings were made subject to the outcome of the Executive Engineer's order. The limitation question under Clause 6.15(b) was thus not finally decided but preserved for the statutory forum.

FACTUAL SUMMARY

The petitioner, Mahesh Chandra, held an electricity connection (service connection no. 2403/002140) which he said had been taken to run a 5 HP tubewell, though the Electricity Department treated it as a connection for a 10 HP motor - a matter in dispute, though it was not disputed that the connection existed. He also ran a brick-kiln business which he shut down in 2003, after which he applied for and obtained a new commercial-category connection (no. 7510/067056) in the name of 'Ram Sahai Gramudyog Sewa Sansthan', against which the last bill (31 October 2015) had been paid (Rs.37,706 deposited). His grievance was that, after applying in January 2004 to permanently disconnect the old 5 HP connection no. 2403/002140 and receiving no notice or bill for eleven years, he was served with a demand bill of about Rs.5,34,940 dated 19 December 2015 and a recovery citation dated 1 January 2016, which he challenged in Writ - C No. 4999 of 2016. The petition was dismissed in default on 11 February 2016 and restored on 16 March 2016. By interim order dated 6 April 2016 a Division Bench (Krishna Murari and Vinod Kumar Misra, JJ.) recorded the petitioner's contention that recovery after 11 years was barred under Clause 6.15(b) of the Supply Code and that he had received no communication or bill in that period, noted his reliance on *Satya Narayan v. U.P. Power Corporation Limited*, ALR 2013(5) 44, found *prima facie* force and directed that the matter required scrutiny, and stayed recovery. Despite time being granted, the respondents did not file a counter affidavit. The matter was repeatedly adjourned (including on counsel's illness slips) through 2016-2017. On 17 April 2018 the Division Bench (Amreshwar Pratap Sahi and Shashi Kant, JJ.), finding no material on record of any order of permanent disconnection of the old connection and a dispute over its nature and load, disposed of the writ by relegating the petitioner to the Executive Engineer (respondent no. 3)

to decide the matter as a billing dispute under Clause 6.5, with liberty to raise all pleas including limitation, and made the recovery proceedings subject to the Executive Engineer's order.

REUSABLE CONSTRUCTIONS

1. Where recovery of electricity arrears is enforced after many years and the consumer pleads the two-year bar under Clause 6.15(b) of the U.P. Electricity Supply Code, 2005 (no sum recoverable after two years from the date it becomes due unless continuously shown as recoverable as arrears of charges of electricity), and there are disputed questions of fact (permanent disconnection, the nature or load of the connection), the writ court will not itself decide those questions but will relegate the consumer to the Executive Engineer to determine the matter as a billing dispute under Clause 6.5, leaving the consumer free to raise all pleas, including limitation, before that authority.
order of 17.4.2018
2. On relegating a disputed recovery to the Executive Engineer, the writ court makes the impugned recovery proceedings subject to the outcome of the Executive Engineer's order; the consumer files a certified copy of the order with objections within ten days and the Executive Engineer decides within six weeks. *order of 17.4.2018*

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

RATIO

Disputed permanent disconnection and nature/load of a connection are questions of fact to be examined by the Executive Engineer as a billing dispute; recovery made subject to that determination

QUESTION

Where the consumer disputes a belated recovery on the grounds that the connection was applied to be permanently disconnected and that its nature/load is wrongly stated, should the writ court decide those questions or relegate the consumer to the Executive Engineer?

HOLDING

The Court relegated the consumer. Finding no material on record to establish that any order of permanent disconnection had been passed for the old connection (no. 2403/002140), and a dispute about the nature of the connection and load consumption, the Division Bench held that whether there was any permanent disconnection of the earlier connection, and whether the connection was of a particular nature or not, are all questions of fact which have to be examined by the third respondent (Executive Engineer) as a billing dispute in terms of Clause 6.5 of the U.P. Electricity Supply Code, 2005. It disposed of the writ with a direction to the Executive Engineer to examine the grievance and pass an appropriate order in accordance with law within six weeks of a certified copy being filed (within ten days) with objections, and provided that the impugned recovery proceedings shall be subject to the outcome of the Executive Engineer's order.
order of 17.4.2018

EVIDENCE “the question as to whether there was any permanent disconnection of the earlier consumer connection of the petitioner or whether the said connection was of a particular nature or not, are all questions of fact which have to be examined by the respondent no.3 as a billing dispute in terms of Clause 6.5 of U.P. Electricity Supply Code, 2005” *order of 17.4.2018*

EVIDENCE “we do not find any material to establish that any order of permanent disconnection had been passed in relation to the earlier electricity connection of the petitioner bearing no. 2403/002140” *order of 17.4.2018*

EVIDENCE “the impugned recovery proceedings shall be subject to the outcome of the order to be passed by the Executive Engineer” *order of 17.4.2018*

FLAG Order-sheet series (2016-2018) with no numbered paragraphs; pins are order dates (pin_basis=date). The final order runs over printed pages 2-4. The Court decided nothing on the merits of the demand; it characterised the disputes as questions of fact and relegated them to the Executive Engineer under Clause 6.5.

HOLDING-UNIT · UP-2005::6.15

OBITER

Two-year bar on recovery of arrears raised against a recovery enforced after 11 years; prima facie force found but the limitation plea preserved for the Executive Engineer

QUESTION

Is a recovery of electricity dues enforced after eleven years barred by Clause 6.15(b) of the U.P. Electricity Supply Code, 2005, and did the Court decide the limitation question?

HOLDING

The Court did not finally decide the limitation question. In the interim order the Division Bench recorded the petitioner's contention that, under Clause 6.15(b), no sum can be recovered after two years from the date it becomes due unless it has been shown continuously as recoverable as arrears of charges of electricity, and that he had received no communication or bill for eleven years (relying on *Satya Narayan v. U.P. Power Corporation Limited*); it found prima facie force in the submission and that the matter required scrutiny, and stayed recovery. On final disposal the Court left it open to the petitioner to take all pleas, including the plea of limitation, before the Executive Engineer - so the two-year bar under Clause 6.15(b) was preserved, not adjudicated. [order of 6.4.2016](#)

EVIDENCE “in view of provisions of Clause 6.15 (b) of the Electricity Supply Code no sum can be recovered after a period of two years from the date when such amount becomes due unless it has been shown continuously as recoverable as arrears of charges of electricity” [order of 6.4.2016](#)

EVIDENCE “Prima facie, there appears to be force in the submission and the matter requires scrutiny” [order of 6.4.2016](#)

FLAG The limitation point was raised in the interim order of 6.4.2016 and expressly preserved for the Executive Engineer at final disposal; it was not decided, hence obiter. Provision keyed to the UP-2005::6.15 limitation spine (clause cited is 6.15(b)).

PRINCIPLE TAGS

two-year-limitation-recovery-of-arrears-clause-6.15b A recovery of electricity dues enforced after 11 years is challenged as time-barred under Clause 6.15(b) of the U.P. Electricity Supply Code, 2005 (no recovery after two years from when the amount becomes due unless continuously shown as recoverable as arrears); the Court found prima facie force but left the plea to the Executive Engineer. Lead authorities: *Satya Narayan v. U.P. Power Corporation Limited* [SCJ-113]. [order of 6.4.2016](#)

billing-dispute-question-of-fact-executive-engineer-clause-6.5 Disputed questions of fact - whether a connection was permanently disconnected and whether it was of a particular nature or load - are for the Executive Engineer to examine as a billing dispute under Clause 6.5; the writ court relegates rather than decides. [order of 17.4.2018](#)

limitation-plea-preserved-before-executive-engineer On relegating a recovery dispute to the Executive Engineer, the consumer is left free to take all pleas, including the plea of limitation, before that authority, and the recovery proceedings are made subject to the outcome of that order. [order of 17.4.2018](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE RECOVERY OF ABOUT RS.5,34,940 ENFORCED AFTER ELEVEN YEARS IS BARRED BY CLAUSE 6.15(B) OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 (THE TWO-YEAR LIMITATION ON RECOVERY OF ARREARS).

Prima facie force was found in the interim order of 6.4.2016, but the limitation plea was expressly preserved for the Executive Engineer at final disposal and not decided by the Court. [SCJ-113] [order of 17.4.2018](#)

NOT DECIDED — WHETHER THERE WAS ANY PERMANENT DISCONNECTION OF THE EARLIER CONNECTION (NO. 2403/002140), AND WHETHER THAT CONNECTION WAS OF A PARTICULAR NATURE OR LOAD (5 HP TUBEWELL AS AGAINST A 10 HP MOTOR).

Held to be questions of fact to be examined by the Executive Engineer as a billing dispute under Clause 6.5; the Court did not decide them. [order of 17.4.2018](#)

RELATED CASES — SEE ALSO

SCJ-113 — *Satya Narayan v. U.P. Power Corporation Ltd.* - the Clause 6.15 two-year-limitation authority the petitioner relied on here; the closest limitation sibling.

SCJ-2191 — *Siya Ram v. State of U.P.* - companion order (same bench era) disposing of a disputed recovery citation by relegation to the Executive Engineer as a Clause 6.5 billing dispute; near-identical disposal pattern.

SCJ-1062 — *Rajee Steels Pvt. Ltd. v. State of U.P.* - Clause 6.15 two-year limitation on recovery of arrears; limitation-spine sibling.

SCJ-013 — *Chandrika v. State of U.P.* - Clause 6.5 billing-dispute relegation to the Competent Authority; billing-dispute sibling.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Satya Narayan v. U.P. Power Corporation</i>	Under Clause 6.15(b) of the U.P. Electricity Supply Code, 2005 no	Relied on by the petitioner for the contention that recovery enforced	Petitioner	Relied on

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Limited</i> ALR 2013(5) 44 [SCJ-113] Allahabad High Court	sum can be recovered after two years from the date it becomes due unless it has been shown continuously as recoverable as arrears of charges of electricity; a belated recovery is time-barred.	after eleven years is time-barred; the Court found prima facie force but left the limitation plea to be decided by the Executive Engineer. order of 6.4.2016		

SCJ-2192 · Mahesh Chandra v. State of U.P. & Others · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.